

EVERGREEN COMMUNITY CARE INC.

GOVERNANCE & CORPORATE COMPLIANCE POLICY

MANUAL

Policy Domain 9 of 11 · ECC-GC-2026-001 · v1.0 · Effective January 2026

No board member, executive, or staff member exercises corporate authority, signs a contract, discloses records, or represents the organization externally beyond what this manual and its delegation schedules authorize. Governance is the framework that keeps every other domain accountable, lawful, and financially sound — this manual is operational policy; it is not legal advice. Any governance or compliance question that cannot be answered from this manual is escalated to the Executive Director or Board Chair before the action proceeds.

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Note on scope: this manual was drafted to fill Domain 9 (Governance & Compliance) of the ECC Policy Interlinkage Map, cross-referenced against the 13 governance sub-policies (9.1–9.13) and their links into the other 10 domains. Sections 9.7 and 9.9 are not independently titled anywhere else in the source material and have been assigned the most consistent title given their position in the numbering and their inbound/outbound links (9.7 sits between records management and conflict-of-interest topics; 9.9 sits alongside licensing-linked domains). Confirm both against your actual numbered policy set before circulating.

PART 1 — POLICY FOUNDATION

1. POLICY STATEMENT AND GOVERNING PHILOSOPHY

Evergreen Community Care Inc. ("Evergreen" or "the organization") is governed by a Board of Directors that holds ultimate fiduciary, legal, and ethical responsibility for the organization, and that delegates day-to-day authority to the Executive Director (ED) under a documented Delegation of Authority Schedule (Appendix A). Good governance is not a back-office function — it is the structure that makes every clinical, financial, and human-resources commitment elsewhere in this policy set enforceable and trustworthy.

This domain exists to answer four questions at any time, for any decision: Who had the authority to make it? Was it made in the organization's interest rather than a private one? Is there a record of it? And does the organization know, and meet, every legal obligation that applies to it? Sections 5 through 17 answer those questions for corporate structure, risk, ethics, privacy and records, licensing, external reporting, contracts, and continuity respectively.

This manual is operational policy, not legal advice. Directors, the ED, and Program Managers (PM) are expected to know this manual; where a situation falls outside it, legal counsel or the funder's licensing office is consulted before acting.

2. LEGISLATIVE AND REGULATORY FRAMEWORK

Authority	Relevance	Key Requirements
Societies Act (BC)	Governs Evergreen's incorporation as a BC society and its bylaws	Annual report filings with the BC Registrar; bylaw amendments require special resolution; director and officer duties of care, loyalty, and good faith (s.53)
Income Tax Act (Canada) — registered charity provisions (if applicable)	Governs charitable registration status, if held	T3010 annual return; disbursement quota; restrictions on political and business activity; conflict-of-interest and related-party transaction disclosure
Community Care and Assisted Living Act (CCALA) and Residential Care Regulation	Licensing authority for residential care operations	Licensee (the organization) accountable for all conditions of licence; Licensing Officer may inspect corporate and financial records relevant to care delivery at any time
Personal Information Protection Act (PIPA), BC	Governs collection, use, and disclosure of personal information by the organization as a private-sector body	Privacy Officer designation required; breach notification duties; individuals' right to access their own personal information
Freedom of Information and Protection of Privacy Act (FOIPPA)	Applies to the extent the organization delivers services under contract to a public body (MCFD/CLBC) and handles information as a service provider	Contractual privacy schedules with MCFD/CLBC may impose FOIPPA-equivalent obligations even though the organization is not itself a public body
Employment Standards Act and Workers Compensation Act (BC)	Sets minimum standards feeding into HR and OHS domains; governance is accountable for organization-wide compliance	Board and ED retain oversight accountability even where compliance is executed by HR and OHS staff

Authority	Relevance	Key Requirements
MCFD Standards for Staffed Residential Services / CLBC Contract Standards	Funder standards requiring documented governance, risk management, and reporting structures as a condition of contract	Standard requires a governing body, delegated authority in writing, and a documented incident and complaints escalation path to the funder
Personal Information Protection and Electronic Documents Act (PIPEDA), Canada	Applies where information crosses provincial or international boundaries or where PIPA does not occupy the field	Baseline federal privacy standard; PIPA is treated as substantially similar in BC but PIPEDA principles inform this manual's privacy sections

3. ROLES AND RESPONSIBILITIES

Role	Governance Accountability
Board of Directors	Ultimate fiduciary and legal responsibility; approves bylaws, policy, budget, and the Delegation of Authority Schedule; appoints and evaluates the ED; approves the annual governance compliance checklist (Appendix H)
Board Chair	Presides over Board meetings; primary escalation point for conflicts of interest involving the ED or other directors; co-signs high-value contracts per the signing schedule
Executive Director (ED)	Exercises delegated authority under Appendix A; accountable to the Board for organization-wide legal, financial, and regulatory compliance; designated Privacy Officer unless the Board assigns this role elsewhere; approves contracts within delegated limits; leads business continuity activation
Program Manager (PM)	Operational point of contact for licensing inspections and funder monitoring visits; escalates conflicts of interest, privacy incidents, and suspected non-compliance to the ED; maintains program-level records per the retention schedule (Appendix D)
Privacy Officer (ED, unless otherwise designated)	Receives and manages privacy breach reports (Appendix E); responds to access-to-information requests; maintains the privacy compliance calendar
All Staff	Complete conflict-of-interest declarations (Appendix B) at hire and annually; report suspected governance or compliance breaches without fear of reprisal; follow records retention and privacy rules in the course of daily work

4. KEY DEFINITIONS

- **Delegation of Authority:** the Board-approved written schedule (Appendix A) stating who may approve what, up to what dollar or risk threshold, and what must return to the Board.
- **Conflict of Interest:** any situation, financial or personal, in which a director, officer, or staff member's private interest could improperly influence, or appear to influence, a decision made on the organization's behalf.
- **Material Contract:** any contract at or above the dollar threshold, or of the contract type, set out in the Delegation of Authority Schedule as requiring ED or Board sign-off rather than PM-level approval.
- **Privacy Breach:** unauthorized collection, use, disclosure, loss, or access to personal information, including accidental disclosure by staff.

- Reportable Event: any occurrence that legislation, licensing conditions, or funder contracts require the organization to report to an external body (Licensing, MCFD, CLBC, WorkSafeBC, the Privacy Commissioner, police) within a defined timeframe.
- Business Continuity Event: any disruption — facility loss, IT outage, pandemic, key-person loss — that threatens the organization's ability to deliver contracted services, triggering the plan in Section 17.

PART 2 — CORPORATE GOVERNANCE AND BOARD OVERSIGHT

5. CORPORATE GOVERNANCE STRUCTURE (9.1)

Evergreen is governed as a BC society under a Board of Directors elected per the bylaws. The Board sets strategic direction, approves policy at the domain level (this manual and its ten counterparts), and holds the ED accountable for operational delivery. The Board meets at minimum quarterly, with a documented agenda, minutes, and action log retained per Appendix D. Strategic planning decisions (interlinkage 10.1→9.1) flow from Management & Leadership into Board approval; the Board does not manage operations directly.

The corporate structure — Board, ED, PM, program staff — is reviewed annually alongside the org chart maintained under Management & Leadership (Domain 10) to confirm reporting lines remain current and match the Delegation of Authority Schedule.

6. BOARD ROLES AND RESPONSIBILITIES (9.2)

Each director owes Evergreen a duty of care, a duty of loyalty, and a duty of good faith. In practice this means: attending meetings and coming prepared; declaring conflicts of interest before discussion begins on the relevant item; exercising independent judgment rather than deferring automatically to staff recommendations; and keeping Board deliberations confidential unless the Board authorizes disclosure.

The Board's standing responsibilities include: approving the annual budget and audited financial statements; hiring, evaluating, and (if necessary) terminating the ED; approving this policy manual and material amendments to it; approving the Delegation of Authority Schedule; and receiving the ED's quarterly compliance and risk report (linking to 10.4, leadership accountability).

A Board Skills Matrix (Appendix C) is maintained to identify gaps — financial, clinical, legal, lived-experience — ahead of recruitment for vacant director positions.

7. DELEGATION OF AUTHORITY (9.3)

Authority not expressly delegated in writing remains with the Board. The Delegation of Authority Schedule (Appendix A) sets, at minimum: the ED's spending authority without further Board approval; the PM's spending and program-decision authority; who may sign contracts, cheques, and grant applications; and which decisions (property, borrowing, litigation, senior hiring) must return to the Board regardless of dollar value.

The schedule is reviewed and re-approved by the Board annually, and immediately upon any change in ED. Delegation flows from strategic decisions made under Management & Leadership (10.3→9.3) and in turn authorizes contract and purchasing activity under Finance & Procurement (9.3→5.6).

PART 3 — ENTERPRISE RISK, ETHICS AND CONDUCT

8. ENTERPRISE RISK MANAGEMENT (9.4)

Governance holds the organization-wide risk register, distinct from — but fed by — program-level and clinical risk identified elsewhere. Client incident and abuse reports (2.9→9.4, 2.7→9.4), QA corrective actions and risk reviews (6.5→9.4, 6.7→9.4), and OHS incident data all feed this register, which the ED presents to the Board quarterly.

Each risk on the register is rated for likelihood and impact, assigned an owner, and reviewed until closed or accepted. High and extreme risks are reported to the Board immediately rather than waiting for the quarterly cycle. Enterprise risk findings in turn feed the organization's overall quality framework (9.4→6.7) and inform incident-response decisions in Client Care & Clinical (9.4→2.9).

9. CONFLICT OF INTEREST (9.8)

Every director, the ED, and every PM completes a written Conflict of Interest Declaration (Appendix B) at appointment or hire and annually thereafter, disclosing any financial interest, family relationship, or outside role that could conflict with Evergreen's interests — including in relation to client funds management, which is a recurring source of conflict-of-interest risk flagged from Program Operations (3.8→9.8).

A director or staff member with a declared or apparent conflict on a specific matter withdraws from discussion and voting on that matter, and the withdrawal is recorded in the minutes or file note. Undeclared conflicts discovered after the fact are treated as a governance breach and escalated to the Board Chair.

10. CODE OF ETHICS AND CONDUCT (9.13)

The Code of Ethics and Conduct applies to directors, the ED, all staff, and volunteers, and is signed at onboarding alongside the confidentiality agreement referenced in Human Resources policy. It sets out Evergreen's five values — Compassion, Integrity, Respect, Accountability, Excellence — as behavioural expectations, and establishes a confidential channel (to the ED, or to the Board Chair where the concern involves the ED) for reporting suspected breaches without fear of reprisal.

Ethics findings and patterns of concern feed the organization's quality framework (9.13→6.1); a cluster of similar ethics reports across programs is treated as a systemic quality issue, not just an individual conduct matter.

PART 4 — PRIVACY, RECORDS AND INFORMATION GOVERNANCE

11. PRIVACY COMPLIANCE — PIPA (9.5)

The Privacy Officer maintains an inventory of personal information the organization collects (employee files feeding in per 1.11→9.5; volunteer confidentiality per 11.4→9.5), the purpose of collection, and its retention period. Personal information is collected only for purposes disclosed at the time of collection, used only for those purposes, and disclosed to third parties only with consent or as legislation or a funder contract requires.

Suspected privacy breaches are reported immediately using the Privacy Breach Report Form (Appendix E). The Privacy Officer assesses real risk of significant harm within 72 hours, notifies affected individuals and the Office of the Information and Privacy Commissioner for BC where required, and logs the breach and remedial action taken. Electronic records protections under Information Technology (8.5→9.5, 8.11→9.6) are the technical control layer underneath this policy; this section is the accountability layer.

12. RECORDS MANAGEMENT AND RETENTION (9.6)

Records are retained per the schedule in Appendix D, which sets minimum retention periods for corporate records (permanent), personnel files (per HR policy, feeding in at 1.5→9.6), payroll records and Records of Employment (4.8→9.6, 4.10→9.6), and program/client records (per funder contract, typically longer than corporate records). Records are stored, whether physical or electronic, in a manner that protects them from loss, unauthorized access, and unauthorized destruction, with electronic records subject to the backup standards set under Information Technology.

Destruction of records at the end of a retention period is authorized in writing by the ED and logged; no record subject to a litigation hold, audit, or open investigation is destroyed regardless of the retention schedule.

13. ACCESS TO INFORMATION AND RECORDS REQUESTS (9.7)

Individuals have a right, under PIPA, to request access to their own personal information held by the organization, and to request correction of inaccurate information. Requests are directed to the Privacy Officer, acknowledged within 5 business days, and responded to within 30 calendar days unless an extension is permitted by legislation and the requester is notified of the extension and reason.

Where the organization holds records as a service provider under an MCFD or CLBC contract, requests may instead be directed to, or coordinated with, the funder under the applicable information-sharing agreement; the Privacy Officer confirms which pathway applies before responding. All requests and responses are logged for audit purposes alongside the Appendix E breach log.

PART 5 — REGULATORY COMPLIANCE AND EXTERNAL REPORTING

14. LICENSING AND REGULATORY COMPLIANCE (9.9)

The ED maintains a master compliance calendar covering every licence, certification, and funder-contract renewal the organization holds — community care facility licence(s), societies annual report, charitable return if applicable, insurance renewals, and program-specific certifications. The PM is the operational point of contact for Licensing Officer inspections and funder monitoring visits, and notifies the ED of any finding, condition, or order within 24 hours of receipt.

Non-compliance findings are tracked to closure with a written corrective action plan, mirroring the QA corrective-action process (Domain 6), and repeat or serious findings are reported to the Board at the next meeting regardless of the standard quarterly cycle.

15. MANDATORY EXTERNAL REPORTING (9.10)

Certain events must be reported to an external body within legislated or contractual timeframes regardless of internal investigation status. This includes client incidents and reportable events to MCFD/CLBC and Licensing (following the client incident management flow 2.9→7.3→6.4→9.4→9.10), serious employee injuries to WorkSafeBC (following 7.3→7.13→4.6→4.9→9.10), and privacy breaches to the Privacy Commissioner where the risk threshold is met.

The External Reporting Contact Log (Appendix F) lists the current phone number, email, and portal for every body the organization is required to report to, and is checked for currency every six months. Missing a mandatory reporting deadline is itself a reportable governance breach, escalated to the ED and Board Chair immediately.

PART 6 — CONTRACTS AND BUSINESS CONTINUITY

16. CONTRACT MANAGEMENT AND SIGNING AUTHORITY (9.11)

All contracts are logged in the Contract Signing Log (Appendix G) with counterparty, value, term, renewal date, and signatory. Signing authority follows the Delegation of Authority Schedule: PMs may sign within their delegated operational limit; the ED signs material contracts and funder agreements; the Board Chair co-signs contracts above the Board-set threshold or involving real property, borrowing, or multi-year commitment.

Funder grant agreements and purchasing contracts flow from this section into Finance & Procurement (9.11→5.10, 9.3→5.6) once signed; Finance tracks disbursement and compliance against contract terms from that point forward.

17. BUSINESS CONTINUITY AND EMERGENCY GOVERNANCE (9.12)

The Business Continuity Plan identifies critical functions (client care continuity, payroll, IT systems, facility access), a recovery time objective for each, and a named backup decision-maker if the ED is unreachable. The plan is activated by the ED or, in their absence, the Board Chair, and integrates directly with the OHS emergency response and pandemic plans (7.7→9.12, 7.15→9.12) and IT disaster recovery (8.10→7.8→9.12) rather than duplicating them.

The plan is tested at least annually through a tabletop exercise, and findings are logged and corrected before the next test cycle.

PART 7 — QUALITY ASSURANCE

18. QA INDICATORS FOR GOVERNANCE & COMPLIANCE

- Percentage of Board meetings held on schedule with quorum, per fiscal year
- Conflict-of-interest declarations completed on time (target: 100% of directors and PMs annually)
- Privacy breaches reported within the internal 72-hour assessment window (target: 100%)
- Mandatory external reports filed within the required timeframe (target: 100%, zero tolerance for missed deadlines)
- Licensing and funder compliance findings closed within the corrective-action timeframe
- Contracts signed by an authority holder matching the Delegation of Authority Schedule (target: 100%)

These indicators feed the organization-wide QA dashboard (9.4→6.7, 9.13→6.1) and are reviewed by the Board alongside the ED's quarterly report.

19. ANNUAL GOVERNANCE REVIEW AND BOARD TRAINING

This manual, the Delegation of Authority Schedule, and the Code of Ethics and Conduct are reviewed by the Board at least annually, or sooner if legislation changes or a significant governance incident occurs. New directors complete a governance orientation within 60 days of appointment, covering fiduciary duty, conflict of interest, privacy obligations, and the Delegation of Authority Schedule. Completion of the Annual Governance Compliance Checklist (Appendix H) is a standing agenda item at the year-end Board meeting.

PART 8 — APPENDICES

APPENDIX A — Delegation of Authority Schedule

Decision Type	PM Authority	ED Authority	Requires Board
Operating expenditure (single item)	Up to \$ _____	Up to \$ _____	Above ED limit
Contract / agreement signing	Program-level only	Material contracts, funder agreements	Real property, borrowing, multi-year
Hiring / termination	Front-line staff	PM and above	ED appointment/termination
Litigation or legal claim	None	Retain counsel, notify Board	Settlement above \$ _____

APPENDIX B — Conflict of Interest Declaration

Name / Role: _____ Date: _____

I declare the following actual, potential, or perceived conflicts of interest (write "None" if none apply):

Signature: _____ Reviewed by: _____

APPENDIX C — Board Skills Matrix

Skill / Experience Area	Director(s) Covering	Gap (Y/N)
Financial / accounting		
Legal		
Clinical / social services		
Lived experience		
Fund development		

APPENDIX D — Records Retention Schedule (summary)

Record Type	Minimum Retention	Disposal Authorization
Corporate records (bylaws, minutes, annual reports)	Permanent	N/A
Personnel files	7 years post-employment (per HR policy)	ED
Payroll records / ROEs	6 years (CRA requirement)	ED
Client / program records	Per funder contract (typically	ED + funder confirmation

Record Type	Minimum Retention	Disposal Authorization
	longer)	
Privacy breach and access-request logs	7 years	Privacy Officer

APPENDIX E — Privacy Breach Report Form

Date/time discovered: _____ Reported by: _____ What information was involved: _____

How the breach occurred: _____ Individuals affected (number/type): _____

Risk of significant harm assessment (Privacy Officer): _____ Notification required (Y/N) and to whom: _____

APPENDIX F — External Reporting Contact Log

Body	Contact / Portal	Reporting Deadline	Last Verified
Licensing (Health Authority)			
MCFD			
CLBC			
WorkSafeBC			
OIPC (privacy)			

APPENDIX G — Contract Signing Log

Counterparty	Value / Term	Signatory	Renewal Date

APPENDIX H — Annual Governance Compliance Checklist

- Board meetings held per bylaws with quorum and minutes filed
- Delegation of Authority Schedule reviewed and re-approved
- Conflict-of-interest declarations collected from all directors and PMs
- Societies Act annual report filed
- Privacy compliance calendar reviewed; breach log reviewed
- Records retention schedule reviewed; any due destructions authorized
- Licensing and funder compliance calendar current with zero overdue items
- Business continuity plan tested within the past 12 months
- Board governance orientation materials current